dependable, or effective treatment, remedy, or cure for, and will not in fact renew, breaking or falling hair.

It is further ordered, That the respondents shall, within sixty (60) days after service upon them of this order, file with the Commission a report in writing, setting forth in detail the manner and form in which they have complied with it.

By the Commission.

[SEAL] D. C. DANIEL, *Secretary.*

[F. R. Doc. 49-2188; Filed, Mar. 23, 1949; 8:46 a. m.]

TITLE 34—NATIONAL MILITARY ESTABLISHMENT

Chapter V—Department of the Army

Subchapter F—Personnel

PART 577—MEDICAL AND DENTAL ATTENDANCE

ADMISSION AND TREATMENT OF MERCHANT SEAMEN IN MEDICAL FACILITIES OF DEPARTMENT OF THE ARMY OUTSIDE CONTINENTAL UNITED STATES

Section 577.21 is added to Part 577, as follows:

§ 577.21 *Admission and treatment of merchant seamen in medical facilities of the Department of the Army outside continental United States*—(a) *General authorization.* Except as indicated in paragraph (b) of this section, the terms and conditions of this section will govern hospitalization and out-patient treatment of merchant seamen in medical facilities of the Department of the Army outside continental United States, such hospitalization and out-patient treatment being authorized when suitable accommodations are available. The term "merchant seamen" as used in this section includes both officers and members of the crew.

(b) *Seamen to whom the provisions of this section do not apply.* The provisions of this section do not apply to treatment of the following:

(1) *Seamen on Army transports.* Such personnel are entitled to treatment in medical facilities of the Department of the Army without charge.

(2) *Merchant seamen on vessels of United States registry when treated in Department of the Army medical facilities in United States possessions.* When merchant seamen on vessels of United States registry are treated in Army medical facilities in United States possessions, they are beneficiaries of the Public Health Service and the provisions of this section are not applicable. Under such circumstances they will be reported to the Surgeon General under the provisions of current regulations applicable to treatment in Army Medical facilities of beneficiaries of the Public Health Service, in order that collection of charges may be made from the Public Health Service.

(c) *Personnel to whom treatment outlined in this section is applicable.* With the exception indicated paragraph (b) of this section, the treatment outlined herein applies to the following:

(1) Merchant seamen aboard vessels operated for the account of the Maritime Commission under the United States flag, including vessels of former War Shipping Administration registry.

(2) Merchant seamen aboard Department of the Army chartered bare boat or time-chartered vessels of commercial operators.

(3) In emergency, to save life or prevent greater suffering, merchant seamen aboard time-chartered or bare boat chartered vessels (other than those referred to in subparagraph (2) of this paragraph), and seamen on privately owned and operated vessels.

(d) *Medical and surgical treatment.* (1) Such medical and surgical care is authorized as is afforded by the facilities of the medical installation concerned, except as follows:

(i) No elective medical or surgical treatment is authorized.

(ii) No spectacles, artificial limbs, hearing aids, or artificial eyes will be provided.

(2) Merchant seamen patients hospitalized under the provisions of this section, whose condition would require retention in an Army hospital for a prolonged period of time, and when lack of transportation facilities prevents evacuation through their local ship's agent, may be evacuated through Army medical evacuation channels as soon as transfer without detriment to the patient is possible, provided that no seaman employed by a vessel of foreign registry will be evacuated to the United States.

(3) Continuation of hospitalization or out-patient treatment by medical facilities, Department of the Army, after return to continental United States is not auhorized. Disposition of merchant seamen patients returned to the United States via Army medical evacuation channels will be in accordance with current procedures by the Army medical facility serving the port.

(e) *Dental treatment.* Dental treatment will be limited to that necessary for the relief of pain or acute septic conditions, such as extractions, and treatments, including temporary fillings. No permanent fillings or replacements will be provided.

(f) *Collection of charges.* The medical facility concerned will collect from the local ship's agent charges for the hospitalization and out-patient treatment furnished, the collections to be made at the rates for hospitalization and out-patient treatment applicable to the fiscal year concerned. The local ship's agent will be instructed to make checks payable to the Treasurer of the United States and to forward them to the medical facility concerned for disposition. [SR 40-590-43, 9 March 1949] (R. S. 161; 5 U. S. C. 22)

[SEAL] EDWARD F. WITSELL, *Major General, The Adjutant General.*

[F. R. Doc. 49-2189; Filed, Mar. 23, 1949; 8:46 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 572]

NEW MEXICO

REVOKING IN PART EXECUTIVE ORDER NO. 6583 OF FEBRUARY 3, 1934

By virtue of the authority contained in section 1 of the act of June 25, 1910, 36 Stat. 847 (43 U. S. C. sec. 141) and in the act of June 15, 1926, 44 Stat. 746, and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 6583 of February 3, 1934, withdrawing public lands in the State of New Mexico for the purpose of aiding the State of New Mexico in making exchange selections as provided in the act of June 15, 1926, is hereby revoked so far as it affects the following-described land:

NEW MEXICO PRINCIPAL MERIDIAN

T. 16 S., R. 21 W.,
Sec. 23, NW¼SE¼SW¼, S½SE¼SW¼ and SE¼SW¼SW¼.

The areas described aggregate 40 acres.

The land is generally rough with extensive rocky areas, and is suitable mainly for grazing purposes.

No applications for these lands may be allowed under the homestead, small tract, desert land, or other non-mineral public land laws, unless the land has already been classified as valuable or suitable for such type of application or shall be so classified upon consideration of an application.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on April 19, 1949. At that time the lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, or selection as follows:

(a) *Ninety-day period for preference-right filings.* For a period of 90 days from April 19, 1949, to July 19, 1949, the public lands affected by this order shall be subject to (1) application under the homestead or the desert land laws, or the Small Tract Act of June 1, 1938 (52 Stat. 609, 43 U. S. C. sec. 682a), as amended, by qualified veterans of World War II, for whose service recognition is granted by the act of September 27, 1944 (58 Stat. 747, 43 U. S. C. secs. 279-283), subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications by such veterans shall be subject to claims of the classes described in subdivision (2).

(b) *Twenty-day advance period for simultaneous preference-right filings.* For a period of 20 days from March 30, 1949, to April 18, 1949, such veterans and persons claiming preference rights superior to those of such veterans, may present their applications, and all such

applications, together with those presented at 10:00 a. m. on April 19, 1949, shall be treated as simultaneously filed.

(c) *Date for non-preference-right filings authorized by the public-land laws.* Commencing at 10:00 a. m. on July 20, 1949, any of the lands remaining unappropriated shall become subject to such application, petition, location, or selection by the public generally as may be authorized by the public-land laws.

(d) *Twenty-day advance period for simultaneous non-preference-right filings.* Applications by the general public may be presented during the 20-day period from June 30, 1949, to July 19, 1949, and all such applications, together with those presented at 10:00 a. m. on July 20, 1949, shall be treated as simultaneously filed.

Veterans shall accompany their applications with certified copies of their certificates of discharge, or other satisfactory evidence of their military or naval service. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated affidavits in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the District Land Office, Las Cruces, New Mexico, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations and applications under the desert land laws and the Small Tract Act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the District Land Office, Las Cruces, New Mexico.

MASTIN G. WHITE,
Acting Assistant Secretary of the Interior.

MARCH 15, 1949.

[F. R. Doc. 49-2182; Filed, Mar. 23, 1949; 8:45 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF THE INTERIOR

Bureau of Indian Affairs

[25 CFR, Part 130]

WAPATO INDIAN IRRIGATION PROJECT, WASHINGTON

ORDERS FIXING OPERATION AND MAINTENANCE CHARGES

MARCH 16, 1949.

Pursuant to section 4 (a) of the Administrative Procedure Act of June 11, 1946 (60 Stat. 238), and authority contained in the acts of Congress approved August 1, 1914; May 18, 1916; and March 7, 1928 (38 Stat. 583, 25 U. S. C. 385; 39 Stat. 154; and 45 Stat. 210, 25 U. S. C. 387) and by virtue of authority delegated by the Commissioner of Indian Affairs to the undersigned, Regional Director, Region No. III, Portland, Oregon, September 14, 1946 (11 F. R. 10267), notice is hereby given of intention to modify § 130.86 of Title 25, Code of Federal Regulations, dealing with operation and maintenance assessments against irrigable lands of the Wapato Indian Irrigation Project, of the Yakima Indian Reservation, Washington, as follows:

Section 130.86 *Wapato Indian Irrigation Project,* to be amended by the inclusion of an additional assessment of $1.00 for 1950 for the purpose of replacing the structure known as the Island Syphon. This assessment will be for one year only and is in addition to the regular operation and maintenance assessment which is to remain unchanged.

Interested persons are hereby given opportunity to participate in preparing the proposed amendments by submitting their views and data or argument in writing to E. Morgan Pryse, Regional Director, Bureau of Indian Affairs, Building 34, Swan Island, Portland 18, Oregon, within 30 days from the date of publication of this notice of intention in the daily issue of the FEDERAL REGISTER.

E. MORGAN PRYSE,
Regional Director.

[F. R. Doc. 49-2183; Filed, Mar. 23, 1949; 8:45 a. m.]

FORT HALL INDIAN IRRIGATION PROJECTS

ORDERS FIXING OPERATION AND MAINTENANCE CHARGES

MARCH 16, 1949.

Pursuant to section 4 (a) of the Administrative Procedure Act of June 11, 1946 (60 Stat. 238), and authority contained in the act of Congress approved March 1, 1907 (34 Stat. 1024), and by virtue of authority delegated by the Commissioner of Indian Affairs to the undersigned Regional Director, Region No. III, Portland, Oregon, September 14, 1946 (11 F. R. 10267), notice is hereby given of intention to modify § 130.32 *Basic water charge,* of Title 25, Code of Federal Regulations, dealing with operation and maintenance assessments against irrigable lands of the Fort Hall Indian Irrigation Project, Idaho, as follows:

By increasing the annual basic water charge per acre from $2.50 to $3.50 for each irrigable acre of land in non-Indian ownership to which water can be delivered from the project works. In addition to the foregoing change there shall be collected annually a minimum charge of $3.00 for the first acre or fraction thereof on each tract for which operation and maintenance bills are prepared. No bill shall be rendered for less than $6.50.

The foregoing proposed changes are to become effective for the irrigation season 1949 and continue in effect thereafter until further notice.

This notice of proposed changes is substituted for the proposed changes set forth in Federal Register Document 49-1231 appearing at page 697 of the FEDERAL REGISTER issue of February 17, 1949.

Interested persons are hereby given opportunity to participate in preparing the proposed amendments by submitting their views and data or argument in writing to E. Morgan Pryse, Regional Director, U. S. Indian Service, Building 34, Swan Island, Portland 18, Oregon, within 30 days from the date of publication of this notice of intention in the daily issue of the FEDERAL REGISTER.

E. MORGAN PRYSE,
Regional Director.

[F. R. Doc. 49-2184; Filed, Mar. 23, 1949; 8:45 a. m.]

DEPARTMENT OF AGRICULTURE

Production and Marketing Administration

[7 CFR, Part 965]

HANDLING OF MILK IN CINCINNATI, OHIO, MARKETING AREA

NOTICE OF RECOMMENDED DECISION AND OPPORTUNITY TO FILE WRITTEN EXCEPTIONS WITH RESPECT TO A PROPOSED AMENDMENT TO TENTATIVELY APPROVED MARKETING AGREEMENT AND TO ORDER, AS AMENDED

Pursuant to the rules of practice and procedure, as amended, governing proceedings to formulate marketing agreements and orders (7 CFR, Supps., 900.1 et seq.; 12 F. R. 1159, 4904), notice is hereby given of the filing with the Hearing Clerk of this recommended decision of the Assistant Administrator, Production and Marketing Administration, United States Department of Agriculture, with respect to proposed amendments to the tentatively approved marketing agreement and to the order, as amended, regulating the handling of milk in the Cincinnati, Ohio, marketing area, to be effective pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (U. S. C. 601 et seq.).

Interested parties may file exceptions to this recommended decision with the Hearing Clerk, Room 1844, South Building, United States Department of Agriculture, Washington 25, D. C., not later than the close of business on the 10th day after its publication in the FEDERAL REGISTER.

Preliminary statement. A public hearing was called by the Production and Marketing Administration, United States Department of Agriculture, on the request of the Cincinnati Sales Association